ROSS SPRINGS-RED CANYON WATERLINE REPLACEMENT
1240LT27Q0022

Description –

A. This project includes the replacement of 4" asbestos cement pipe (abandoned in place) with 4" HDPE water main and associated valves and connections to laterals.

B. The work includes;

1. Installation of 4475 linear feet of 4" HDPE pipeline, most of which will be shallow bury or laid on cleared ground and covered with imported fill from a government source.
2. Cover an additional 1150 linear feet of existing pipeline with imported fill from a government source.
3. Installation of 2 combination air-vacuum valves with utility boxes.
4. Installing associated valves, daylight drains, and pumpout drains; and connecting to existing lateral mains and services.

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in FAR Part 12. This announcement constitutes the only solicitation. Quotations are being requested and a separate written solicitation will not be issued.

Solicitation number 1240LT27Q0022 is issued as a Request for Quotation (RFQ) for Ross Springs Waterline Replacement.

This acquisition is set-aside for small business concerns. The applicable North American Industry Classification Standard Code is 237110 The small business size standard is $45 This acquisition is a Total Small Business Set-Aside. All responsible sources may submit a quotation which will be considered by the agency.

SCHEDULE OF ITEMS

ROSS SPRINGS-RED CANYON WATERLINE REPLACEMENT
Final (06/26/2026)

ITEM NUMBER	DESCRIPTION	METHOD OF MEAS	UNIT	QUANTITY	PRICE	TOTAL
BASE BID						
011900-1	Mobilization	LSQ	LS	Lump Sum		
024102-1	Removal and Disposal of Existing Structures	LSQ	LS	Lump Sum		
133403-1	Utility Box - Concrete, 48" Dia. w/ Air-Vacuum Relief Valve	AQ	EA	2		
221100-1	Pipeline - 1.5" HDPE, 250 PSI with Heat Fusion Joints, Including Trench	DQ	LF	50		
221100-2	Pipeline - 2" HDPE, 250 PSI with Heat Fusion Joints, Including Trench	DQ	LF	20		
221100-3	Pipeline - 4" HDPE, 250 PSI with Heat Fusion Joints, Including Trench	DQ	LF	4475		
221100-4	Pipe Sleeve - 5" GSP	DQ	LF	20		
221100-5	Daylight Drain - 1" Screened	AQ	EA	1		
221100-6	Daylight Drain - 1.5" Screened	AQ	EA	1		
221100-7	Daylight Drain - 1.5" Screened, w/ Ball Valve (at Fire Hydrant)	AQ	EA	1		
221100-8	Pumpout Drain - 1"	AQ	EA	2		
221100-9	Pumpout Drain - 1.5"	AQ	EA	1		
221102-1	Curb Box Only (Over Existing 1" Metal Valve)	AQ	EA	1		
221102-2	Curb Box Only (Over Existing 2" Metal Valve)	AQ	EA	1		
221102-3	Curb Box Only (Over Existing 4" Metal Valve)	AQ	EA	1		
221102-4	Curb Valve and Box - 1.5" Poly	AQ	EA	4		
221102-5	Curb Valve and Box - 2" Poly	AQ	EA	2		
221102-6	Gate Valve and Box - 4" Iron	AQ	EA	1		
312010-1	Select Borrow (Imported - Government Source)	DQ	CY	1250		
312100-1	Project Site Preparation and Grading	LSQ	LS	Lump Sum		
330530-1	Locating System Access Point - Water, Grounded	AQ	EA	3		
330530-2	Locating System Access Point - Water, Non-Grounded	AQ	EA	8		
TOTAL BASE						**$ -**

Technical Data -
Technical data and supporting documentation associated with this solicitation are available through the following sources. The following documents are included as attachments to this solicitation:

C04 Plans 1240LT27Q0022
C04 SF-1442 1240LT27Q0022
C04 SOW 1240LT27Q0022
C04 WD Daggett County Utah 1240LT27Q0022

Project Location

The project is located in the Flaming Gorge Ranger District of the Ashley National Forest, Daggett County, Utah, in Section 52, T 2 N, R 21 E. It is located approximately 25 miles southwest of Manila, Utah. The project may be accessed from State Highway 44 and Forest Road 095 (Red Canyon Road).

Definitization of Equitable Adjustments for Change Orders

Pursuant to FAR 36.101-4(b), information regarding USDA's definitization of equitable adjustments for change orders under construction contracts may be found at Contracting with USDA under "Federal Acquisition Regulation 36.101-4". USDA's procedures that apply to the definitization of equitable adjustments for change orders under construction contracts may be found in AGAR 443.304 -70.

Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions
The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference Feb 1998
This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
☐ Alternate I (Nov 2025) of 52.212-4

This is a commercial construction acquisition. FAR 52.212-4 is amended as follows:

(b) *Inspection/Acceptance*. Inspection and Acceptance will be conducted in accordance with FAR 52.246-12, Inspection of Construction (Aug 1996).

(d) *Changes.* Changes will be handled in accordance with the following FAR clause(s):

☒ FAR 52.243-4, Changes (Nov 2025)
☐ FAR 52.243-5, Changes and Changed Conditions (Nov 2025)

(o) *Warranty.* FAR 52.246-21, Warranty of Construction is applicable to this contract.

52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.222-50 Combating Trafficking in Persons (Nov 2025)
☐ Alternate I (Nov 2025) of 52.222-50
52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)
52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3 Protest After Award (Sep 2025)
52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)
52.240-91 Security Prohibitions and Exclusions (Nov 2025)
☐ Alternate I (Nov 2025) of 52.240-91
52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked:

☐ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
☐ 52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)
☐ 52.204-9 Personal Identity Verification of Contractor Personnel Jan 2011
☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
☐ 52.204-91 Contractor identification (Nov 2025)
☒ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
☐ 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (Sep 2025)
☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
☐ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)
☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
☐ Alternate I (Mar 2020).
☐ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
☐ 52.219-9 Small Business Subcontracting Plan (Nov 2025)
☐ Alternate III (Nov 2025) of 52.219-9.
☐ Alternate IV (Nov 2025) of 52.219-9

☐ 52.219-14 Limitations on Subcontracting (Nov 2025)
☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)
☐ 52.219-33 Nonmanufacturer Rule (Nov 2025)
☒ 52.222-3 Convict Labor (June 2003)
☐ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
☐ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
☐ Alternate I (Jul 2014) of 52.222-35
☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
☐ Alternate I (Jul 2014) of 52.222-36
☐ 52.222-37 Employment Reports on Veterans (Nov 2025)
☒ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
☒ 52.222-41 Service Contract Labor Standards (Aug 2018)
☒ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)

This Statement is for Information Only:
It is not a Wage Determination

Employee Class	Monetary Wage -- Fringe Benefits
Aircraft Mechanic	$XX.XX

☒ 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)
☒ 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014)
☐ 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)
☐ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)
☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
☒ 52.222-90 Addressing DEI Discrimination by Federal Contractors (Apr 2026)
☒ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)
☐ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
☐ Alternate I (May 2008) of 52.223-9
☐ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)
☐ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
☒ 52.223-23 Sustainable Products and Services (Nov 2025)
☐ 52.224-3 Privacy Training (Jan 2017)
☐ Alternate I (Jan 2017) of 52.224-3

☐ 52.225-1 Buy American-Supplies (Nov 2025)
☐ Alternate I (Oct 2022) of 52.225-1
☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
☐ Alternate II (Nov 2025) of 52.225-3.
☐ Alternate III (Nov 2025) of 52.225-3.
☐ Alternate IV (Oct 2022) of 52.225-3
☐ 52.225-5 Trade Agreements (Nov 2023)
☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)
☐ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)
☐ 52.229-12 Tax on Certain Foreign Procurements
☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
☐ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)
☐ 52.232-36 Payment by Third Party (Nov 2025)
☐ 52.240-92 Security Requirements (Nov 2025)
☐ Alternate II (Nov 2025) of 52.240-92
☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (Nov 2025)
☒ 52.242-13 Bankruptcy (July 1995)
☒ 52.246-21 Warranty of Construction (Mar 1994)
☐ 52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025)
☐ Alternate I (Apr 2023) of 52.247-64.
☒ Alternate II (Nov 2021) of 52.247-64

The Contractor shall comply with the following FAR Clauses for Commercial Construction.

52.222-6 Construction Wage Rate Requirements (Nov 2025)
52.222-7 Withholding of Funds (Nov 2025)
52.222-8 Payrolls and Basic Records (Nov 2025)
52.222-9 Apprentices and Trainees (Nov 2025)
52.222-10 Compliance with Copeland Act Requirements (Nov 2025)
52.222-11 Subcontracts (Labor Standards) (Nov 2025)
52.222-12 Contract Termination-Debarment (May 2014)
52.222-13 Compliance with Construction Wage Rate Requirements and Related Regulations. (May 2014)
52.222-14 Disputes Concerning Labor Standards (Nov 2025)
52.222-15 Certificate of Eligibility (May 2014)

52.236-5 Material and Workmanship (Jul 2025)

The following clauses are applicable when checked:

☒ 52.222-30 Construction Wage Rate Requirements-Price Adjustment (None or Separately Specified Pricing Method (Aug 2018)
☒ 52.222-31 Construction Wage Rate Requirements-Price Adjustment (Percentage Method) (Aug 2018)
☒ 52.222-32 Construction Wage Rate Requirements-Price Adjustment (Actual Method) (Nov 2025)
☒ 52.225-9 Buy American-Construction Materials (Nov 2025)
☐ Alternate I (Oct 2022) of 52.25-9

52.225-9 Buy American-Construction Materials.

As prescribed in 25.1102(a), insert the following clause:

BUY AMERICAN-CONSTRUCTION MATERIALS (OCT 2022)

(a) *Definitions*. As used in this clause—

Commercially available off-the-shelf (COTS) item—

(1) Means any item of supply (including construction material) that is–

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means—

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Domestic construction material means—

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of

both-
(i) An unmanufactured construction material mined or produced in the United States; or
(ii) A construction material manufactured in the United States, if–
(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or
(B) The construction material is a COTS item; or
(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".
Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.
Foreign construction material means a construction material other than a domestic construction material.
Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.
Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.
Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.
"United States" means the 50 States, the District of Columbia, and outlying areas.
(b) Domestic preference. (1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. (See FAR 12.505(a)(2)). The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.
(2) This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:
None
(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that-
(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components*.
(1) The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;
(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that is manufactured in the United States and does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(A)*(1)* of this clause.
(3) The procedures in paragraph (b)(3)(i)(A)*(2)* of this clause will no longer apply as of January 1, 2030.
(B) *For domestic construction material that is a critical item or contains critical components*. *(1)* The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.
(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest foreign offer of construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(B)*(1)* of this clause.
(3) The procedures in paragraph (b)(3)(i)(B)*(2)* of this clause will no longer apply as of January 1, 2030.
(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or
(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.
(c) Request for determination of inapplicability of the Buy American statute. (1) (i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including-
(A) A description of the foreign and domestic construction materials;
(B) Unit of measure;
(C) Quantity;
(D) Price;
(E) Time of delivery or availability;
(F) Location of the construction project;
(G) Name and address of the proposed supplier; and
(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.
(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.
(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).
(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination

before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.
(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.
(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.
(d) *Data*. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:
Foreign and Domestic Construction Materials Price Comparison
Construction Material Description Unit of Measure Quantity Price (dollars)*
Item1:
Foreign construction material
Domestic construction material
Item2:
Foreign construction material
Domestic construction material
[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is
issued)].
[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach
summary.]
[Include other applicable supporting information.]
(End of clause)
Alternate I (Oct 2022). As prescribed in 25.1102 (a)(3) substitute the following sentence for the first sentence in paragraph
(1)(ii)(A) of the definition of "domestic construction material" in paragraph (a):
(A) The cost of its components mined, produced, or manufactured in the United States exceeds __ percent of the cost of all
its components. [Contracting officer to insert the percentage.]
Parent topic: 52.225 [Reserved]

☐ 52.225-11 Notice of Buy American Requirement-Construction Materials under Trade Agreements (Nov 2025)
- ☐ Alternate I (Nov 2025) (of 52.225-11
- ☐ Alternate II (Oct 2022) of 52.225-11

☒ 52.228-2 Additional Bond Security (Oct 1997)
☒ 52.228-5 Insurance-Work on Government Installation (Jan 1997)
☒ 52.228-11 Individual Surety-Pledge of Assets (Feb 2021)
☒ 52.228-13 Alternative Payment Protections (Jul 2020)

ALTERNATIVE PAYMENT PROTECTIONS (JULY 2000) (MODIFIED)

(a) The Contractor shall submit one of the following payment protections:

Payment Bond

(b) The amount of the payment protection shall be 100 percent of the contract price.

(c) The submission of the payment protection is required within *15* days of contract award.

(d) The payment protection shall provide protection for the full contract performance period plus a one-year period.

(e) Except for escrow agreements and payment bonds, which provide their own protection procedures, the Contracting Officer is authorized to access funds under the payment protection when it has been alleged in writing by a supplier of labor or material that a nonpayment has occurred, and to withhold such funds pending resolution by administrative or judicial proceedings or mutual agreement of the parties.

(End of clause)

☒ 52.228-14 Irrevocable Letter of Credit (Nov 2014)
☒ 52.228-15 Performance and Payment Bonds-Construction (Jun 2020)
☐ 52.228-17 Individual Surety-Pledge of Assets (Bid Guarantee) (Feb 2021)
☒ 52.236-2 Differing Site Conditions (Jul 2025)
☒ 52.236-3 Site Investigation and Conditions Affecting the Work (Jul 2025)
☒ 52.236-6 Superintendent by the Contractor (Jul 2025)
☒ 52.236-7 Permits and Responsibilities (Jul 2025)
☐ 52.236-8 Other Contracts (Jul 2025)
☒ 52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements (Jul 2025)
☒ 52.236-10 Operations and Storage Areas (Jul 2025)
☐ 52.236-11 Use and Possession Prior to Completion (Jul 2025)
☒ 52.236-12 Cleaning Up (Jul 2025)
☐ 52.236-13 Accident Prevention (Jul 2025)
☐ Alternate I (Nov 1991) of 52.236-13
☒ 52.236-14 Availability and Use of Utility Services (Jul 2025)
☐ 52.236-15 Schedules for Construction Contracts (Jul 2025)
☐ 52.236-16 Quantity Surveys (Jul 2025)
☐ Alternate I (Apr 1984) of 52.236-16
☒ 52.236-17 Layout of Work (Jul 2025)
☒ 52.236-21 Specifications and Drawings for Construction (Jul 2025)

☐ Alternate I (Apr 1984) of 52.236-21
☐ Alternate II (Apr 1984) of 52.236-21
☒ 52.242-14 Suspension of Work (Apr 1984)
☐ 52.248-3 Value Engineering (Oct 2025)
☐ Alternate I (Apr 1984) of 52.248-3

Other Applicable Clauses

N/A

AGAR Clauses

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of the clause may be accessed electronically at Internet address https://www.usda.gov/guidance-documents/acquisition-policy/ocp/usda-agar30-sept-26pdf

AGAR 452.203-70 Unenforceable Supplier Terms (Sep 2026)

AGAR 452.204–70 Modification for Contract Closeout (Apr 2026)

AGAR 452.232-71 Progress Payments for Commercial Construction Contracts (May 2026)

AGAR 452.236-70 Electronic Submission of Payment Requests (Sep 2026)

Solicitation Information

Award Type

It is anticipated that a firm fixed price contract will be awarded as a result of this synopsis/solicitation. The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Period of Performance

90 days from the time of receiving the notice to proceed

Organized Site Visit

No official scheduled site visit. It is encouraged that each quoter visit the site prior to submitting quote.

Evaluation and Basis for Award

The provision at FAR 52.212-2, *Evaluation—Commercial Products and Commercial Services*, is not incorporated in this solicitation. Quotations will be evaluated using the evaluation factors identified below.

The Government will first evaluate quotations to determine whether they are technically acceptable. Technical factors will be evaluated on an Acceptable or Unacceptable basis. A quotation rated Unacceptable will not be considered for award.

Award will be made to the responsible quoter submitting the lowest evaluated price among those quotations determined to be technically acceptable. No tradeoffs will be made between price and non-price factors.

Technical Capacity
The Government will evaluate the quoter's technical capacity to successfully perform the requirements of the Statement of Work (SOW) within the required performance schedule. The quoter's submission shall demonstrate a clear understanding of the requirements and sufficient experience, personnel, resources, and scheduling capability to successfully complete the work.
At a minimum, the quoter shall provide the following:

1. Relevant Experience
Provide information for at least two (2) projects completed within the past five (5) years that are similar in size, scope, and complexity to the requirements of this solicitation. Projects should demonstrate experience performing HVAC installation, replacement, renovation, or similar mechanical work.
For each project, provide:

- Project name and location;
- Customer/owner;
- Brief description of the work performed;
- Approximate contract value;
- Date of completion; and
- Customer point of contact, including telephone number and/or email address.

The Government will evaluate whether the projects demonstrate experience relevant to the work required by this solicitation.

2. Ability to Meet the Required Schedule
Provide a brief description of how the quoter intends to accomplish the work within the performance period identified in the SOW. The response shall identify, at a minimum:

- Anticipated staffing and key personnel;
- Major equipment and/or subcontractors anticipated for performance;
- Availability and anticipated lead times for major HVAC equipment and materials; and
- Any known scheduling constraints that could affect timely completion.

The Government will evaluate whether the information submitted demonstrates a reasonable approach and the capability to meet the required performance schedule.

3. Exceptions or Limitations
Identify and provide a detailed explanation of any requirement contained in the SOW that the quoter cannot successfully accomplish. If there are no exceptions or limitations, the quoter shall affirmatively state that it can perform all requirements of the SOW.
Failure to provide sufficient information to demonstrate technical capacity may result in the quotation being determined technically unacceptable.

Price:
The quoter shall provide pricing as requested in the Schedule of Items on page **2** of this Request for Quote. Failure to propose pricing for all individual line items may result in a quotation being excluded from further consideration. The quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable.

Past Performance
Past performance is a measure of the degree to which the quoter (including major subcontracts) has satisfied previous customers and complied with Federal, State and Local laws and regulations.

The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance.

Past Performance will be evaluated using the following rating system:

- Acceptable: The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.
- Neutral: Quoter does not have a past performance record.

Unacceptable: The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior

Evaluation Method:

Quotations will first be evaluated to determine whether they are Technically Acceptable. Technical acceptability will be evaluated on an Acceptable/Unacceptable basis in accordance with the requirements of this solicitation, including the plans, specifications, and any other technical requirements.
A quotation will be considered Technically Acceptable if it demonstrates that the quoter understands and will perform the work in accordance with all material requirements of the solicitation. Failure to meet any material requirement or to provide the information required by the solicitation may result in the quotation being determined Unacceptable and eliminated from further consideration.
Price will be evaluated only for those quotations determined to be Technically Acceptable. The Government will evaluate prices to determine whether they are fair and reasonable.
Award will be made to the responsible quoter submitting the lowest evaluated price among those quoters whose quotations are determined to be Technically Acceptable.
No tradeoffs will be conducted between technical acceptability and price. Award will not be

based on a comparative evaluation or ranking of technical quotations.

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998
This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)
Add any items at FAR 52.212-1 not already stated and any other applicable instructions such as page limits, font size, document type required for submission (PDF, Excel). Remember to keep things simple under simplified acquisitions. In most cases there is no need for explicit instructions for page limits, font size, volumes, etc. This should be limited to more complex acquisitions. Some examples of what would be routinely used for simplified acquisitions are:

FAR 52.212-1 is amended as follows:

Period for acceptance of offers.
The Offeror agrees to hold the prices in its offer firm for **60 calendar days** from the date specified for receipt of offers.

52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provisions are applicable if checked:

☐ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
☒ 52.204-7 System for Award Management—Registration (Nov 2025)
☐ Alternate I (Nov 2025) to 52.204-7

- ☐ 52.204-90 Offeror Identification (Nov 2025)
- ☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)
- ☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
- ☒ 52.219-2 Equal Low Bids (Nov 2025)
- ☐ 52.222-5 Construction Wage Requirements, Secondary Site of the Work (Nov 2025)
- ☒ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
- ☐ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment–Certification (Nov 2025)
- ☐ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification (Nov 2025)
- ☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
- ☐ 52.223-4 Recovered Material Certification (May 2008)
- ☒ 52.225-2 Buy American Certificate (Oct 2022)
- ☐ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)
- ☐ 52.225-6 Trade Agreements-Certificate (Feb 2021)
- ☐ 52.225-10 Notice of Buy American Requirement- Construction Materials (May 2014)
  - ☐ Alternate I (May 2014) of 52.225-10
- ☐ 52.225-12 Notice of Buy American Requirement-Construction Materials under Trade Agreements (May 2014)
  - ☐ Alternate I (May 2014) of 52.225-12
  - ☐ Alternate II (Nov 2023) of 52.225-12

- ☐ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
- X 52.228-1 Bid Guarantee (Sep 1996)

BID GUARANTEE (SEPT 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, *e.g.,* bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds-

(1) To unsuccessful bidders as soon as practicable after the opening of bids; and

(2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be *20* percent of the bid price or $3 million, whichever is less.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of clause)

☒ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)

Other Applicable FAR Provisions

N/A

AGAR Provisions

This solicitation incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of the clause may be accessed electronically at Internet address https://www.usda.gov/guidance-documents/acquisition-policy/ocp/usda-agar30-sept-26pdf

NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Protest Procedures

The United States Department of Agriculture (USDA) is committed to fair, transparent, and efficient acquisitions. Interested parties with concerns about this solicitation are encouraged to seek resolution through the following USDA procedures.

Tier 1: Contracting Officer Concern Resolution

Submission: Interested parties with concerns about either the solicitation or subsequent award should first submit their concern directly to the Contracting Officer, providing sufficient detail to allow the Contracting Officer to understand and assess the issue.

Process: The Contracting Officer will review the concern, seek clarification as needed, and engage with the interested party to attempt prompt resolution.

Review Timeline: The Contracting Officer will make every effort to provide a response or resolution within 10 business days of receiving the concern.

Effect on Award or Performance: Tier 1 engagement is not considered an official notification of filing an agency protest and does not pause solicitation deadlines, delay award decisions, or suspend contract performance.

Next Steps: If the matter cannot be resolved at Tier 1, the interested party may file a written agency protest under Tier 2. USDA encourages all parties to seek resolution with the Contracting Officer before filing an agency protest.

Tier 2: Agency Protest

If concerns cannot be resolved at Tier 1, an interested party may file a written agency protest with either the Contracting Officer or the USDA Independent Review Authority. The decision by the USDA Independent Review Authority is an alternative to a decision by the Contracting Officer. The USDA Independent Review Authority will not consider an appeal of the Contracting Officer's decision on an agency protest.

The protest must state whether the protester elects review by the Contracting Officer, by the UDSA Independent Review Authority. If no election is stated, the Contracting Officer will decide the protest.

Required Information: Protests shall include the information set forth in FAR 33.104-4 (a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.

Submission: Agency protests should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Timeliness: Protests must be filed within the timeframes specified in FAR 33.104.

Effect on Award or Performance: Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined to be in the best interest of the Government.

Review Timeline: USDA strives to resolve agency-level protests within 35 business days of receipt.

Election of Forum: By filing a protest with USDA, the protesters agree not to file a protest on the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If such a protest is filed externally, the USDA agency protest will be dismissed.

Questions: Questions regarding this notice or protest procedures should be directed to the Contracting Officer identified in this solicitation.

428.306 Insurance under fixed-price contracts.

(a) Insert the following language in solicitations and contracts which include the clause at FAR 52.228-5, Insurance - Work on a Government Installation.

1. Workers' Compensation and Employer's Liability. The contractor must comply with applicable Federal and State workman's compensation and occupational disease statutes. If these diseases are not covered, they must be included under the employer's liability section of the policy, unless contract operations are commingled with the contractor's commercial operations. Employer's liability coverage of at least $100,000 is required, except in States with exclusive or monopolistic funds that prohibit private carriers from providing workers' compensation.
2. General Liability. The contractor must have bodily injury liability insurance coverage written on a comprehensive form of policy of at least $500,000 per occurrence.
3. Property Liability (Remove if not required): The contractor must have property damage liability insurance required in the amount of $250,000 per occurrence. contracting officer must insert amount required.
4. Automobile Liability. The contractor must have comprehensive automobile liability insurance covering bodily injury and property damage for all vehicles used in the contract. For U.S. operations, the coverage must be at least $200,000 per person, $500,000 per occurrence for bodily injury, and $20,000 per occurrence for property damage or loss.
5. Aircraft Public and Passenger Liability. When using aircraft for the contract, the contractor must have aircraft public and passenger liability insurance. Coverage must be at least $200,000 per person, $500,000 per occurrence for bodily injury, excluding passengers. For passenger injury, coverage must be at least $200,000 multiplied by the number of seats or passengers, whichever is greater.